

Military Justice / UCMJ Study Guide

Source: Overview of Military Justice (39 slides) | **Exam:** 071-OAXXD012, 40 minutes, multiple choice, 70% to pass

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How to use this guide. Everything here comes from the slide deck. Nothing has been added from outside sources, so if it is in this guide it is fair game and if it is not in the deck it is not in this guide. Sections are ordered by how likely the material is to appear on the exam.

- **Tier 1** is the hard-recall material. Numbered lists, fixed categories, specific counts. This is what multiple choice exams are built out of. Know all of it cold.
- **Tier 2** is concept material. Likely tested, but usually as "which of these is an example of" rather than pure recall.
- **Tier 3** is background and reference. Lower probability, but cheap to skim and it makes Tier 1 make sense.

A quick self-test note: if you can reproduce every boxed list in Tier 1 from memory on a blank sheet of paper, you are in good shape.

TIER 1: Know These Cold

Tier 1 is the hard-recall material. Numbered lists, fixed categories, specific counts. This is what multiple choice exams are built out of. Know all of it cold.

1.1 Article 31(b) Rights Warning (Slide 32)

The four rights a Soldier must be advised of:

1. Right to be informed (of the nature of the accusation)
2. Right to remain silent
3. Any statement can be used against you
4. Right to counsel

Memory hook: Informed, Silent, Used, Counsel.

When you must advise (Slide 33)

All three conditions, together:

1. You are acting in an **official capacity**
2. It is **prior to questioning**
3. The person is a **suspect or accused**

This is a common trap. A casual conversation with someone who is not a suspect does not trigger the warning. Watch for exam questions that strip out one of the three conditions.

Waiver of rights (Slide 34)

The three questions asked to obtain a waiver:

1. Do you understand your rights?
2. Do you want a lawyer?
3. Are you willing to make a statement?

1.2 Who May Authorize a Search and Seizure (Slide 27)

Only three:

1. **Commander**
2. **Military Judge**
3. **Military Magistrate**

That is the complete list. Any answer choice adding First Sergeant, Platoon Leader, MP, CID, or Staff Judge Advocate to that list is wrong.

1.3 Rights of a Soldier Under Article 15 (Slide 11)

Seven rights:

1. Right to remain silent
2. Right to counsel (**formal proceedings only**)
3. Right to demand trial
4. Decision period
5. Right to call witnesses
6. The hearing
7. The right to appeal

The most testable detail here: right to counsel attaches to **formal** proceedings only. Expect that qualifier to be tested directly.

1.4 Article 15 Commander's Inquiry (Slide 10)

Before imposing NJP, the commander should inquire about three things:

1. Whether an **offense** was committed
2. Whether the **Soldier was involved**
3. The **character and military record** of the Soldier

1.5 Types of Court-Martial (Slide 12)

Three levels:

1. **Summary**
2. **Special** (two types)
3. **General**

Note the parenthetical on Special. If the exam asks how many types of special court-martial exist, the answer from this deck is two.

1.6 Administrative Separations: Characterization of Service (Slide 20)

Characterization	Trigger	Benefits
Honorable	No misconduct	Entitled to all benefits
General	Minor misconduct	Entitled to most benefits
Other Than Honorable (OTH)	More serious misconduct; requires a board	Forfeits most benefits

Standard of proof: Preponderance of the evidence (more likely than not).

1.7 Separation Board Entitlement (Slide 19)

A Soldier's rights in an administrative separation:

- Notice and opportunity to respond
- Attorney (consultation or board representation)
- Hearing (separation board) **if either** of the following:
 - More than **6 years** of service, **OR**
 - **OTH** discharge recommendation

The "OR" matters. Either condition alone entitles the Soldier to a board. Expect an answer choice that incorrectly makes it "AND."

1.8 Chapters for Involuntary Separation (Slides 21 to 22)

Chapter	Basis
CH 5	Convenience of the Government
5-8	Parenthood
5-13	Personality Disorder
5-17	Other designated physical or mental condition
CH 7	Defective / Fraudulent Entry
CH 9	Alcohol / Drug Abuse Rehabilitation Failure
CH 11	Entry Level Performance and Conduct
CH 13	Unsatisfactory Performance
CH 14	Misconduct
14-12a	Minor Disciplinary Infractions
14-12b	Pattern of Misconduct
14-12c	Serious Misconduct
CH 18	Failure to Meet Body Fat Standards
CH 19	Qualitative Management Program

The 14-12 subseries (a, b, c escalating from minor to serious) is the most likely thing pulled out of this table.

1.9 Articles 133 and 134 (Slides 5 to 6)

- **Article 133:** Conduct Unbecoming an Officer and a Gentleman
- **Article 134:** Conduct Prejudicial to Good Order and Discipline

Two adjacent articles with similar-sounding names. Drill the pairing until it is automatic, because a swapped-number answer choice is the easiest distractor to write.

1.10 Pretrial Restraint (Slide 35)

Four types, least to most restrictive:

1. **Conditions on liberty**
2. **Restriction** (in lieu of arrest)
3. **Arrest**
4. **Confinement**

1.11 Article 32 Preliminary Hearing (Slides 25 to 26)

Rights of the accused at the hearing

1. Attend the hearing
2. Present evidence
3. Cross examine witnesses
4. Right to counsel

Preliminary Hearing Officer process

1. Findings of fact
2. Recommendations
3. Accused receives a copy of the report
4. Accused files objections **within 5 days**
5. Convening authority takes action

The number to memorize: 5 days. It is the only hard deadline in the deck, which makes it a near-lock for a question.

1.12 Mandatory Bar Grounds, Directive 2012-03 (Slide 18)

Administrative separation or bar to reenlistment is **required** for:

1. Failure to make satisfactory progress in the Army Weight Control Program
2. **Two consecutive** APFT failures
3. Removal for cause from NCOES courses

Note the word "required." These are mandatory, not discretionary.

1.13 Counseling Essentials (Slide 14)

- **Form:** DA Form 4856
- **Regulation to cite:** AR 635-200, **paragraph 1-16** and Part IV (Rehabilitative Results and Comments)
- Oral counseling **is not enough** because no record is created
- Document misconduct or deficiency **with specificity**
- The purpose is that Soldiers understand the commander's expectations for future conduct

TIER 2: Likely Tested, Concept Level

Tier 2 is concept material. Likely tested, but usually as "which of these is an example of" rather than pure recall.

2.1 UCMJ Jurisdiction (Slide 3)

Jurisdiction runs two ways.

Over the person:

- Active duty Soldiers and Reservists **while on active duty**
- Military academy cadets and midshipmen
- **National Guard personnel in Federal service (Title 10 U.S.C.)**
- Retirees
- Enemy prisoners of war
- Others (some civilians deployed with units)

Over the offense:

- Worldwide jurisdiction
- Possible concurrent jurisdiction

Two qualifiers carry the weight here. Reservists are covered *while on active duty*, and National Guard personnel are covered *in Federal service under Title 10*, not while in state status. Given the audience, expect the Guard/Title 10 distinction to show up.

2.2 Inspections Versus Searches (Slide 31)

An inspection is **not** a search.

- Primary purpose must be to ensure **security, military fitness, and good order and discipline** of a unit
- **Does not require probable cause**

Contrast that with a search, which requires probable cause and authorization from one of the three officials in section 1.2. The distinction is conceptually clean and easy to write a question about, so know which side of the line a given scenario falls on.

2.3 Search and Seizure Concepts (Slides 28 to 30)

Probable cause framework:

- Probable cause
- Totality of the circumstances
- Neutral and detached (the authorizing official must be)

Authority questions: Who controls the person or place?

- Authority to search
- Authority to apprehend
- **Exception: apprehension in the home requires a warrant**

Exceptions to the warrant/authorization requirement covered in the deck:

- Consent
- Incident to apprehension

The deck ends this section with "Call your Judge Advocate," which is worth remembering as the correct answer to any scenario question where the right move is to seek legal advice rather than act.

2.4 Commander's Responsibilities (Slide 7)

1. Maintain good order and discipline
2. Investigate reported offenses
3. Enforce the law
4. **Protect Soldiers' rights**
5. Determine disposition of the case

Do not skip number 4. Exam writers like the item that seems least like a "command" function.

2.5 Nonbinding Disposition Guidance (Slide 8)

The commander should consider **14 factors** when determining disposition of an offense. The count itself is testable.

Factors named in the deck:

- Mission of the command where the offense occurred
- Nature, seriousness, and circumstances of the offense
- View of the victim
- Extent of harm
- Accused's willingness to cooperate
- Criminal history
- Impact on alternate disposition

Note the word **nonbinding**. This is guidance, not a mandate.

2.6 Corrective Training (Slide 16)

Also called remedial training. The rules:

- Must be **directly related to the deficiency observed** and oriented to correct that particular deficiency
- It is **training, NOT punishment**
- Must **not be humiliating or degrading**
- A leader should be present
- Examples given: remedial PT, bi-hourly check-in for failure to repair (FTR)

The classic exam scenario gives you corrective training that is unrelated to the deficiency or that is degrading, and asks whether it is proper. It is not.

2.7 Administrative Reprimand, AR 600-37 (Slide 17)

- Documents misconduct or poor performance in official files
- Formal procedures: the Soldier **may rebut in writing**
- Filing options:
 - **Local file**
 - **Permanent file (AMHRR)**
 - General officer directed

The local versus permanent filing choice is the detail most likely to be tested.

2.8 Inquiries and Investigations (Slides 23 to 24)

Three types, escalating:

1. Informal inquiry
2. Informal investigation under **AR 15-6**
3. **Article 32** preliminary hearing

Investigation sequence:

1. Discovery of incident or allegation
2. Initial considerations
3. Types of inquiries or investigations
4. Conducting an investigation

AR 15-6 is the regulation number to lock in here.

2.9 Unlawful Command Influence, Core Concept (Slides 36 to 38)

UCI is command action that improperly influences the outcome of a case. Two ideas from the deck matter most:

- A commander is responsible for UCI committed by **subordinates and staff, regardless of the commander's knowledge or intentions**
- If a mistake is made, **raise the issue immediately** and cure it with an appropriate remedy

Those two are the ones most likely to appear as a standalone question. The full list of ten is in Tier 3.

2.10 Crimes Under the UCMJ (Slide 4)

Common law crimes: homicide, rape, larceny, robbery, assault, burglary

Military crimes: disrespect, disobedience, AWOL, conduct unbecoming an officer, conduct prejudicial to good order and discipline

The likely question format is sorting: given an offense, is it a common law crime or a uniquely military one?

TIER 3: Reference and Background

Tier 3 is background and reference. Lower probability, but cheap to skim and it makes Tier 1 make sense.

3.1 Purpose of the Military Justice System (Slide 2)

1. Promote justice
2. Help maintain good order and discipline in the armed forces
3. Promote efficiency and effectiveness in the military
4. Strengthen national security

Low probability, but it is a clean four-item list, which is exactly the kind of thing that gets used to fill out an exam. Worth two minutes.

3.2 The 10 Commandments of Unlawful Command Influence (Slides 37 to 38)

1. Do not order a subordinate to dispose of a case in a certain way
2. Do not communicate an inflexible policy on disposition or punishment
3. The commander, if accuser, may not refer the case
4. Do not stack the panel, nor select or remove court members to obtain a particular result
5. Do not place outside pressure on the judge or court members to obtain a particular decision
6. Do not intimidate witnesses or discourage them from testifying
7. The court decides punishment; an accused may not be punished before trial
8. Ensure subordinates and staff do not commit UCI, inadvertently or not
9. Recognize that subordinates and staff may commit command influence attributed to the commander regardless of his knowledge or intentions
10. The commander may not have an inflexible attitude toward clemency, and if a mistake is made, raise the issue immediately and cure it with an appropriate remedy

The recurring theme across all ten is **inflexibility and pressure**. If an answer choice describes a commander with a fixed, no-exceptions policy on punishment or clemency, that is UCI.

3.3 Full Administrative Actions List with Regulations (Slide 13)

Action	Regulation
Counseling	AR 600-20
Corrective Training	AR 600-20
Administrative Reprimand	AR 600-37
Bar to Reenlistment	AR 601-280
FLAG	AR 600-8-2
MOS Reclassification	AR 600-200
Security Clearance Revocation	AR 380-67
Relief from Duties	(no reg cited)
Adverse NCOER / OER	(no reg cited)
Removal from Special Status	(no reg cited)
Rehabilitative Transfer	(no reg cited)
Administrative Reductions	AR 600-8-19
Administrative Separation	AR 635-200

If you memorize only four regulation numbers, make them **AR 600-20** (counseling and corrective training), **AR 600-37** (reprimands), **AR 635-200** (separations), and **AR 15-6** (investigations).

3.4 The Counseling "Magic Phrase" (Slide 15)

Also called the silver bullet. You will not be asked to reproduce it, but know what it accomplishes: it puts the Soldier on notice that continued misconduct may result in separation, and it spells out that a General or OTH discharge could severely prejudice them in civilian life and that an OTH could cost them military and veterans benefits including educational benefits. It also states that further misconduct may result in elimination **without further counseling**.

The testable idea is the function, which is formal notice, cited to AR 635-200 paragraph 1-16.

3.5 The Bar to Continued Service (Slide 18)

Framing statement: the Army desires to retain only those Soldiers of **high moral character, competence, and demonstrated adaptability** (AR 601-280). The mandatory grounds under Directive 2012-03 are in section 1.12.

Rapid Review: Numbers to Memorize

Number	What it counts
3	Officials who may authorize a search
3	Things a commander inquires about before NJP
3	Waiver questions under Article 31(b)
3	Types of court-martial
3	Service characterizations
3	Mandatory bar grounds under Directive 2012-03
4	Rights under Article 31(b)
4	Rights at an Article 32 hearing
4	Types of pretrial restraint
4	Purposes of the military justice system
5	Commander's responsibilities
5 days	To file objections to the Article 32 report
6 years	Service threshold for a separation board
7	Rights under Article 15
10	Commandments of unlawful command influence
14	Nonbinding disposition factors
70%	Passing score on this exam

The Ten Most Likely Missed Details

1. Article 15 right to counsel applies to **formal proceedings only**
2. Separation board is triggered by more than 6 years **OR** an OTH recommendation, not both
3. Article 31(b) warning requires **all three** conditions: official capacity, prior to questioning, suspect or accused
4. National Guard falls under UCMJ **in Federal (Title 10) service**
5. Reservists are covered **while on active duty**
6. Article 133 is officers; Article 134 is good order and discipline
7. Inspections do **not** require probable cause because they are not searches
8. Apprehension **in the home** requires a warrant
9. Corrective training must be related to the deficiency and must not be degrading
10. A commander owns UCI committed by staff **regardless of knowledge or intent**

Addendum: Asked in Class

Not on the slides, and not expected on the exam. This is here because it was asked during the class and an answer was promised.

A.1 Apprehension in the home: on post or off post? (Slide 28)

The deck says apprehension in the home requires a warrant. The question asked was whether "home" means a house on post or a house off post.

The dividing line is not on post versus off post. It is whether the place is a **private dwelling** under **R.C.M. 302(e)(2)**.

Counts as a private dwelling:

- Single family houses, duplexes, and apartments
- **Government quarters on post**, same as a residence off post

Does not count as a private dwelling:

- Living areas in **barracks**
- Vessels, aircraft, and vehicles
- Tents, bunkers, and field encampments

So a house on post receives the same protection as a house off post. A barracks room does not.

One practical note: in the military the instrument is usually an **apprehension authorization** from a commander, military judge, or military magistrate rather than a civilian judge's warrant. Functionally it is the same idea, someone neutral has to approve the entry.